IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No226

CP(CAA)/6(AHM)2023
in
CA(CAA)/50(AHM)2022

Proceedings under Section 230-232 of Co. Act, 2013

IN THE MATTER OF:

Akar HR Management Pvt Ltd **.....Applicant**
Akar Brokers Pvt Ltd
Akar Fare Collection Pvt Ltd **.....Respondent**

Order delivered on 13/04/2023

Coram:

Deep Chandra Joshi, Hon'ble Member(J)
Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant : Ms. Vaibhavi Parikh, Adv.
For the Income Tax : Ms. Pankti Shah, Adv.
For the RD: : Mr. Shiv Pal Singh, Asst. Director

ORDER

Learned Asst. Director Mr. Shiv Pal Singh appearing for RD objected to transfer of authorized capital from demerging unit to the resulting company. Learned Counsel for the petitioner company states that this Bench had allowed transfer of authorized capital in one case and she undertakes to supply copy of the order to the RD for making submission, if any. Learned Counsel Ms. Shah appearing for the Income Tax Department states that she has already filed report and since Learned Counsel for the petitioner company makes statement that the demerged company will continue to be in existence and undertakes to pay the tax dues as per law, subject to the statement made by the petitioner company, Income Tax Department has no objection if the scheme is approved.

List for hearing on 01.05.2023

-Sd-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

-Sd-

DEEP CHANDRA JOSHI
MEMBER (JUDICIAL)

Prakash - Steno